

separate defense counsel.”] There was no stipulation to continue any discovery deadlines. Accordingly, Defendant has not established that the discovery responses served on April 24, 2026 were timely. Because the responses were untimely, objections were waived.

Sanctions:

The court shall impose a monetary sanction against a party who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP §§ 2031.300; 2031.300(c).) A responding party’s untimely discovery responses do not divest the trial court of the authority to hear a motion to compel. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 407.) The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though the requested discovery was provided to the moving party after the motion was filed. (Id at 409.)

While there was clearly a significant delay in responding to the discovery requests which appears to continue, it appears that Defendant’s failure to timely respond was substantially justified by a purported conflict of interest, which prevented former counsel from continuing representation. While the circumstances are somewhat vague, Defendant has established that sanctions are not warranted. The requests for sanctions should be denied.

Motion to Compel Responses to Requests for Production, Set One, GRANTED.

Defendant to provide verified code-compliant responses and documents, without objection, within 30 days.

Plaintiff’s Request for Sanctions DENIED.

Defendant’s Request for Sanctions DENIED.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503186	HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION TO COMPEL ANSWER/RESPONSE TO SPECIAL INTERROGATORIES RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) BY LATOYA HORN

Tentative Ruling:

Motion to Compel Responses to Special Interrogatories, Set One, GRANTED.

Defendant to provide verified code-compliant responses, without objection, within 30 days.

Plaintiff’s Request for Sanctions DENIED.

Defendant's Request for Sanctions DENIED.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2503186	HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES - EMPLOYMENT LAW (SET ONE) BY LATOYA HORN

Tentative Ruling:

Motion to Compel Responses to Form Interrogatories Employment Law, Set One, GRANTED.

Defendant to provide verified code-compliant responses, without objection, within 30 days.

Plaintiff's Request for Sanctions DENIED.

Defendant's Request for Sanctions DENIED.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2503186	HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION TO BE RELIEVED AS COUNSEL FOR DISCOVERY MSO LLC, A TEXAS LIMITED LIABILITY COMPANY

Tentative Ruling: Motion to be Relieved as Counsel for Defendant Discovery MSO, LLC GRANTED.

Attorneys Krista M. Enns and Steven M. Selna are relieved as counsel of record for Defendant, effective upon the filing of the proof of service of the signed court order upon the Defendant.

A status hearing re representation for Defendant Discovery MSO, LLC shall be set for 9.14.26. Defendant is to submit a declaration 10 days prior to the hearing date giving an update regarding obtaining counsel for this matter.

Trial Setting Conference and the two Order to Show Causes remain calendared for 12.03.26.